

[Translated from the Arabic]

**Guidelines for the Preparation of Reports
by Member States on the Application of
the 1960 Recommendation against Discrimination in Education**

**Adopted by the Executive Board of UNESCO
at its 207th session in October 2019**

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific

components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

GENERAL INFORMATION:

Country name: Saudi Arabia

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☐ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☐ No, please briefly explain the difficulties encountered:

² http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

³ http://portal.unesco.org/en/ev.php-URL_ID=15321&URL_DO=DO_TOPIC&URL_SECTION=201.html

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☐ Policies and programmes aim to eliminate and prevent discrimination in education
- ☐ Access to justice in case of violations of the right to non-discrimination in education
- ☐ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of pupils to educational institutions*
- *Non-differential treatment, including of foreign nationals resident in your country*

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

All of Saudi Arabia's regulations derive from Islamic *sharī'a* law, which imposes justice and equality and prohibits all forms of oppression and discrimination. Among the most important legislative and regulatory texts which emphasize non-discrimination are the following:

- Saudi regulations guarantee all citizens the right to education free of charge and without discrimination: article 30 of the Basic Law of Governance stipulates that “the State shall provide public education and is bound to combat illiteracy.”
- Article 233 of the Public Policy on Education promulgated by Decision 779 of the Council of Ministers of 1969 stipulates that all forms and stages of education shall be free of charge.
- Article 15 of the Education Policy stipulates that all stages of education shall be linked to the State Public Development Plan, which is aimed at achieving a sound partnership between men and women.
- In view of Saudi Arabia's belief in the importance of the role of education and of achieving sustainable development and ensuring human rights, the country has made numerous efforts to provide education and combat illiteracy on the basis of gender equality. In this connection, it is important to note that the educational system in Saudi

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Arabia is fundamentally based on equality between men and women in all aspects, whether with regard to mechanisms for acceptance and enrolment in the various educational stages, to study curricula and examinations, to the qualifications of teachers and lecturers, to scholarship programmes, or the quality of study facilities.

- In the field of the disabled, the Saudi Educational Policy comprises a number of fundamentals and constants relating to the field of special education. Article 36 stresses the dignity of the individual and the provision of appropriate opportunities for individuals to build their capacities so that they may contribute to the advancement of the nation. Articles 55 and 56 refer to the provision of care for the physically and mentally disabled, to endeavouring to remove those causes that can be removed, and to drawing up permanent and temporary special programmes, according to their needs. Article 188 provides that the State is responsible in accordance with its abilities for the education of the physically and mentally disabled and for drawing up various special cultural and training curricula geared to their needs.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

- Article 36 of the Public Policy on Education promulgated by Council of Ministers Decision 779 of 1969 stresses the dignity of the individual and the provision of appropriate opportunities for individuals to build their capacities so that they may contribute to the advancement of the nation.
- Paragraph 1 of Article 10 of the Draft Education System stipulates that the Ministry shall provide equal opportunities at the various stages of general education.
- Regarding admission to higher education, article 4 of the Regulation on Studies and Examinations in University Education issued on 16 January 2003 stipulates that preference among candidates shall be granted in accordance with their grades in the general secondary education certificate examinations, their personal interview and entrance examinations.
- Article 3 of the Basic Regulation on Admission to Colleges and Technical Institutes for Male and Female Trainees stipulates that disabled candidates may be accepted in training units directly after submitting their case to the committee to determine what specialization is appropriate in their case.

Among the main measures to be adopted in this regard are:

- Provision of education of all types and stages to both males and females in all regions and governorates of Saudi Arabia, where there are government and private schools and government and private universities and colleges, in addition to technical and vocational training institutions, technical colleges and industrial institutes.
- All legislation relating to admission to general, higher and technical education is addressed to both males and females and entails no discrimination between them, in embodiment of the principle of equality.]

- Admission guidelines and instructions include procedures which facilitate the acceptance of categories of students who do not have official identity documents.
- Preservation of the rights of the child in education in the event of a dispute between the child's parents.
- Admission of candidates of other religions to government and other schools, and absence of discrimination between them.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|--|
| ☐ Providing financial incentives and fellowships | ☐ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☐ Adapting education infrastructure |
| ☐ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ☐ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☐ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☐ Valuing diversity in schools |
| ☐ Other: | ☐ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Among the most important measures taken in this regard are:

- Summer campaign programmes:
These consist of selective campaigns focusing on awareness-building and literacy campaigns for Bedouin and nomads in remote areas which do not have adult education schools, for periods of six days, with a view to providing male and female illiterates with educational, awareness-building and instructive programmes which may help them in their daily lives.
- Partnership programme between universities and technical colleges and the Association for the Disabled, aimed at securing admission for candidates with various types of disability, whether aural or visual, or wheelchair users and those suffering from other disabilities.

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

- Virtual Southern Border Schools project, which is a virtual educational digital environment offered to schools in the southern border region to ensure and provide sustainable education to students in the context of the conditions prevailing along the southern border.
- Certain demographic categories of Saudi society receive financial aid to encourage them to complete various educational levels and to ensure that no one who is capable of receiving education is left behind. The regulations of the Ministry of Education include a range of policies and programmes in support of these categories, the most important of which are the following:
 - Compensation for individuals with special needs;
 - Incentive rewards for literacy and adult education students;
 - Aid to students from remote villages;
 - Expatriation aid to students whose domicile is far from middle and secondary schools.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

Minister of Justice Decision 14/T/7969 of AH 26/4/1441 to all courts and holders of authorized marriage contracts not to allow the conclusion of marriage contracts for individuals under the age of 18.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

☐ Pre-primary education is free of charge for all: Please provide the duration:

Pre-primary education is free of charge and available, but it is not compulsory. The regulations of the Guidelines for Acceptance and Enrolment in General Education stipulate that enrolment in the kindergarten stage shall be available to children over three years, but under six years.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

- Paragraph 1 of article 8 of the Draft Educational System: The stages of general education are: early childhood, primary education, middle education, secondary education (early childhood is the educational stage including kindergarten and the first four classes of primary education)
- Saudi Arabia's Vision 2030 has devoted attention to early childhood by stressing that every Saudi child should receive good educational opportunities in accordance with varied choices. The Ministry of Education has therefore endeavoured to launch an Early Childhood educational project which includes kindergartens (levels two and three) and the first primary classes (one, two and three) for both boys and girls. This is aimed at raising enrolment levels in kindergarten to 95% by 2030. The decision was implemented during 2019.
- An exception is made for children enrolled in kindergartens from the requirement that they need to have reached the statutory age if they are three months younger than children not enrolled in kindergartens under the decision promulgated on 1 May 2011. [sic]

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Is primary education compulsory in your country?

☐ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

- Primary education is compulsory in Saudi Arabia pursuant to Council of Ministers Decision 139 of 15 June 2004, making education compulsory between the ages of six and fifteen.
- Paragraph 3 of article 8 of the Draft Educational System "The student's guardian is obliged to enrol those under their guardianship in compulsory general education. If they

do not comply with this requirement, they shall be made accountable and punished by the competent authorities.”

The primary level: The official general education ladder begins with primary education, which is the base of the educational pyramid. It extends for six academic years in which children are enrolled from age six. The regulations allow an extension of three months to the age of the new pupil, in application of the principle of expanding the scope of pupils admitted to this stage. The system also allows an extension of six months, provided that the applicant has completed the kindergarten stage, as an incentive for pupils to enrol in it.

- Is primary education available free of charge to all?

☐ **Yes:** Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

- The regulations of Saudi Arabia guarantee all citizens the right to education free of charge without discrimination. Article 30 of the Basic Law of Governance stipulates that “the State shall provide public education and is bound to combat illiteracy.”
- Article 233 of the General Policy on Education in Saudi Arabia promulgated by Council of Ministers Decision 779 of 1969 provides that all types and stages of education shall be free of charge.
- Article 4 of the Draft Education System: “General education is a right of every child of the age of compulsory education in government, private, international or specialized schools; the State shall provide expenditure thereon in government schools.”

The State in Saudi Arabia bears primary responsibility for education, and provides all levels and types of education free of charge to all citizens and residents. It also provides financial assistance as an incentive to enrolment in certain types of education. The State undertakes the construction of buildings and the provision of equipment, textbooks and educational accessories, and school transport (at symbolic annual rates and free of charge for disabled students). It prepares male and female teachers and ensures their training and qualification. It provides all their salaries and financial assistance to certain categories as an incentive to them to enrol in the educational system. The private sector helps to provide educational services in private schools, institutes and colleges in exchange for school fees for those citizens and residents so wishing.

☐ **No:** Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes (there are details) ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Middle education:

Middle education comes between primary education, which constitutes the beginning of the general education ladder, and secondary education, which represents its end. Pupils enrol in middle education after having completed primary education; it lasts three years and qualifies pupils to enrol in a secondary education school in general education or to vocational stream. Education is compulsory in this stage.

- Secondary education:

The structure of general education in Saudi Arabia is completed with the secondary education level, which reaches the top of the general education ladder. Enrolled in secondary education are male and female students who have successfully completed middle education. The secondary level lasts for three years, during which students study more specialized subjects which give them a greater ability to acquire general culture and qualify them to enrol in higher education. Education is not compulsory at this level.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

Article 162 of the Labour System promulgated by Royal Decree No. M/51 dated 23/8/1426 AH and amended by Royal Decree No M/134 dated 27/11/1440 AH provides that “no individual shall be employed who has not completed their fifteenth year”.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☐ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- *Non-differential treatment, including of foreign students*

- All legislation relating to admission to higher education is addressed to both genders; no distinction is made between the two, in furtherance of the principle of equality.
- Council of Ministers Decision 6 of 17 September 2009 contains a number of provisions in support of women, including expanding the scope of specialized technical and vocational education to women in numerous specializations.
- Issuance of instructions for the admission of all qualified disabled persons to university education institutions, with the requirement that these institutions should provide training and monitoring programmes which ensure their success in those institutions.
- Admission of female students to the Custodian of the Two Holy Mosques Overseas Scholarship Programme ever since it was launched in 2005.

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

- Availability of admission to all university specializations (medicine, science, engineering, humanities...)

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☐ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Disbursement of monthly financial aid to all students, male and female, in higher education.
- Provision of internal grants to male and female students alike.
- Introduction of new methods of technical and vocational training, such as distance training for disabled students who cannot travel, or students with strong motor disabilities, who receive training at home.
- In the field of technical and vocational training, special vocational departments have been opened for disabled students (e.g. audio, visual, mental, physical disabilities) with a view to training and qualifying them for the requirements of the job market.
- Granting of internships to disabled students in private universities and colleges, for which the government bears the cost of the corresponding study fees.
- Saudi Arabia offers annual grants to students from friendly Arab and Islamic States in various continents, for study at Saudi universities in various specializations, such as *sharīʿa*, Arabic language, natural sciences, medical science, etc.
- The State has provided opportunities for internships and overseas scholarships to persons with disabilities on a basis of equality with others. Council of Ministers Decision 124 of 28 December 1977 stipulated that students with physical or mental disabilities receiving grants for university studies should be treated equally with other students receiving university grants with respect to allocations, allowances and all other aids.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☐ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of flexible learning pathways
- ☐ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

- **Building the Saudi National Strategy for Lifelong Learning in Saudi society**

This is a strategy which is aimed at providing Saudi individuals with opportunities for varied and ongoing lifelong learning, cultivation and training for self-realization which ensure that they have a life of dignity and work with competency, which is one of the pillars of the Saudi Vision 2030 strategy, which is aimed at achieving a vibrant, flourishing, advanced community which accompanies the contemporary knowledge society.

- **Society without Illiteracy programme**

This is an educational alphabetic literacy programme lasting one academic year. It is implemented in places where there are illiterates in cities and remote villages in both government and private sectors and charitable and reformist associations, Koran-memorization associations, care centres and prisons.

- **Programme for the training of female teachers in the psychological characteristics of adults**

This is aimed at qualifying female adult education teachers at the primary level in the necessary skills which are geared to the variables of the contemporary world, preparing them and developing their skills and enhancing their educational and vocational level.

- **The Learning Neighbourhood programme**

This is aimed at broadening the concept of adult education from literacy to lifelong learning, disseminating the culture of voluntary work among individuals in the community, empowering women to advance to their rightful cultural, hygienic, social and economic level, and endowing them with the skills that qualify them for the labour market, supporting the idea of learning for work, living together with others, and dealing with social variables.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ Establishment of minimum norms and standards in education
- ☐ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

- Article 11 of the Draft General Education System provides that “The Ministry shall determine the necessary criteria to ensure a safe and attractive school environment which is conducive to quality education.”
- Paragraph 4 of article 43 of the Draft Education System provides that “The Ministry, in coordination with the relevant authorities, shall undertake to design prototypes for educational buildings which are geared to the various geographical and climatic environments in Saudi Arabia.”
- The authorities concerned with the building of schools in Saudi Arabia ensure that school buildings are executed in accordance with international standards with respect to classroom area, external areas, the number of toilets, the availability of administrative facilities, the pursuit of non-classroom activities, and the existence of emergency exits, making optimum use of materials in construction and finishings, and applying thermal and acoustic insulation. This is apparent from the regulations applied and observed in design and planning criteria for school buildings, which specifically require the application of the following set of criteria and engineering principles:
 - Saudi Building Code

- Saudi Standards, Metrology and Quality Organization - International Building Code (IBC) - Royal British Institute Code (IRBC) - Code of the American Association Of Sewer Service Companies [??] - Code of the American National Fire Protection Association (NFPA) [??] - Recommendations of the Code of the U.S. Green Building Council (USGBC) • Initiative on Enhancing Safety and Security Measures in School Buildings The initiative is aimed at raising the level of safety in schools, achieving a higher degree of school security, and qualifying trainers in school safety and security, by equipping a number of schools with tools and safety equipment and apparatus, and by concluding contracts with companies for the provision of trained security guards who are proficient in school security matters, and the preparation of trainers in safety and security, and hence the qualification of a number of male and female safety coordinators in schools. • Paragraph 15 of article 8 of the Regulation on Procedures governing the Conditions for the Granting of Licences for the Provision of School Transport provides that “Vehicles shall be provided for the transport of male or female students with disabilities requiring special equipment having the specifications and conditions stipulated by the educational authorities.” [problem of repeated text in Arabic here] • Many Saudi universities have adopted the national project “Comprehensive Access” (<i>al-wuṣūl ash-shāmil</i>) promulgated by Council of Ministers Decision 35362 of 30 July 2013, which is aimed at enhancing the capacity of universities to support individuals with disabilities by observing international standards in overcoming any architectural, technical or educational obstacles to ensuring participation and supporting moves to a university for all. • Building a number of university campuses for women, such as Princess Noora Bint Abdurrahman University or the campuses of King Saud University and Imam Muhammad Bin Saud University.	
--	--

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☐ Initial training and continuous professional development is provided
- ☐ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession

- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

- **Adoption of regulations for educational posts:**
 The approval of the High Commissioner was issued to adopt the regulations governing educational posts and enforce them from the beginning of 2020 AD. The regulation is considered a historic milestone in the educational process in Saudi Arabia and an important turning point in the strategy for developing the education sector in Saudi Arabia through the procedures, mechanisms and features it contains, which ensure that teachers' posts are professional, and their work serious and disciplined within the educational system, strengthening justice and proper compensation on the basis of outstanding performance.
- **National Institute for Educational Vocational Development:**
 The National Institute for Vocational Development was established; it has a legal identity, financial and administrative independence, and is organizationally linked to the Minister of Education. It is supervised and managed by the Board of the Institute, the purpose of which is: support the professionalization of general education, advance the level of vocational educational practices to a professional level – build a system for vocational educational development in the general education sector with high competence and effectiveness and support its application – organize vocational educational development activities and programmes, verify that they are of good quality, which ensures competence and effectiveness in the educational sector – strengthen sustainable vocational development in the education sector by building career paths and vessels for varied vocational development – train educational leaders by identifying them, attracting them and qualifying them.
- **Quality vocational development programme “Expertise”**
 A quality programme aimed at developing vocational educational practices, supervisors, teachers and student guidance counsellors within the framework of global standards, which are geared to Saudi Arabia's Vision 2030, in accordance with the basic requirements of educational work and the requirements of the vocational reality of the target groups, and the needs of development and change in the Ministry of Education. This programme will be implemented within the framework of an international partnership which enjoys outstanding, rich educational expertise and experience, sending candidates to a number of prestigious world universities in such countries as the United States, the United Kingdom, Australia, New Zealand, Finland. Students thus spend part of their time in direct contact with professional vocational practices in schools which have a wealth of expertise and outstanding educational performance.
- **Summer programme for vocational educational development:**
 The idea of launching the summer programme for educational development came in response to the Saudi Arabian Vision 2030 initiative, in order to achieve an optimum investment of the time of holders of educational posts during the summer holidays and slack periods and in the back-to-school period, and to support the moves of the ministry to enhance educational outputs. The National Centre for Vocational Educational Development, in partnership with a group of universities, the Initiatives' Centre, the Educational Services Development company, the Educational Technologies Development company, various private centres and specialized companies have all offered a number of good-quality specialized development programmes, in accordance with best international practices which provide an

opportunity for vocational educational development at such times. Vocational development has also been highlighted since it is the primary tool for developing educational practices and building the capacity of the educational system. The programme is aimed at offering good-quality development programmes to the holders of educational posts which are geared to their needs and specializations, harnessing their summer holiday time and the return of administrative and educational staff to school.

- **International Teachers' Forum:**

This is aimed at integrating international educational expertise and local expertise in building sound educational practices and strengthening and managing the role of teachers in the classroom environment, enhancing their relationship with their students, and helping them to understand their role in the classroom environment in a precise manner and their role in moving to centralized teaching for students, and understanding twenty-first century skills and the requirements for achieving that in the classroom.

- **Missions and scholarship programmes:**

The Ministry of Education offers holders of educational posts opportunities for missions and scholarships to domestic and foreign universities to meet the needs of the Ministry in the specializations required, thus providing opportunities to complete their higher studies in their preferred specializations, according to the functional needs of the work assigned to them in their sectors.

- **Reform of teacher training programmes in educational colleges:**

This is to support the path of faculties of education and redesign it in line with future requirements. Some policies have been adopted that are intended to achieve the reform of this path. This includes reducing admission rates in colleges of education at the bachelor's or educational diploma levels, and seeking to build a general framework for teacher training in tracks that are consistent with the needs of the general education sector.

- **Consultative Council for Teachers:**

The Consultative Council for Teachers was established with a view to strengthening the culture of dialogue and consultation among teachers and to addressing their concerns and suggestions. Its period is two academic years, beginning at the beginning of the academic year. The process of proposing candidates for membership in the Consultative Council takes place in the second term of the academic year preceding the forthcoming session of the Council.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☐ Curriculum includes human rights education

☐ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

The National Committee for Human Rights Education was established under the supervision of the Ministry of Education, with the participation of nine governmental bodies. A Human Rights Education Plan was adopted, and a Human Rights Education Handbook was published, printed and circulated to all institutions, schools and universities, and a Human Rights Curriculum Matrix Guide was also published

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☐

- Please provide a brief description:

- On the basis of the the organizational structure and guidelines of the Ministry of Education adopted by Council of Ministers Decision 511 of 7 May 2019, the bodies responsible for private education and its organization in the Ministry of Education are:
 - Agency for Private General Education
which is aimed at building a strategic vision focusing on strengthening the private sector partnership in order to offer quality general education which observes global standards of quality in accordance with national constants and in accordance with the general education policy of Saudi Arabia.
 - Agency for Private University Education
which is aimed at building a strategic vision focusing on strengthening the private sector partnership in order to offer quality university education which observes global standards of quality in accordance with national constants and in accordance with the general education policy of Saudi Arabia.

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The role of government bodies consists in strengthening the contribution of the private sector to offering quality education which observes global standards of quality by means of general supervision of private education and its organization and development. Among the main factors in such organization are:

**I. General Education Policy in Saudi Arabia:
Part V, Chapter 6, the following articles:**

- 175: The State shall encourage all stages of private education, under the technical and administrative supervision of the relevant educational authorities, as clarified by the relevant regulations
- 176: Authorization to open private schools and institutes is a matter for the relevant educational authorities.
- 177: The private education system clarifies the conditions that must be ensured and the duties incumbent upon it.
- 179: State supervision of private education shall achieve the following objectives:
 - (a) Ensure an appropriate level of education and sanitary conditions which are not inferior to those obtaining in state schools;
 - (c) Assess the extent of financial assistance needed for the school to achieve justice and balance between the various private schools.
- Help private schools and institutes to achieve the educational objectives from the point of view of supervision and technical support.

II. Regulations for Private Schools promulgated by Council of Ministers Decision 1006 of 1975.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

¹³ See: Article/Paragraph 1(1).

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

Saudi Arabia has numerous schools for resident foreign communities, providing education to their children in accordance with the curricula in force under the Regulations for Foreign Schools in Saudi Arabia issued pursuant to Council of Ministers Decision 26 of 1 June 1997 AD. There are over 20 different such curricula taught in Saudi Arabia, including those of the United States of America, the United Kingdom, France, the Philippines, Australia, Pakistan, India, Guinea, Mali, Japan, Sweden, Greece, etc.

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

- The Regulations for Foreign Schools in Saudi Arabia issued pursuant to Council of ministers Decision 26 of 1 June 1997 AD regulate the work of foreign schools in Saudi Arabia. Among its most important provisions are:

Article 2:

These Regulations govern the situation of foreign schools for foreign communities resident in Saudi Arabia for the provision of appropriate education to the children of those communities, within specific guidelines, ensuring that they are able to pursue their education when they return to their countries.

Article 11:

Each foreign school shall be responsible for the organization of various aspects of work within the school, in addition to determining its level in the various educational and academic circles.

Article 12: Each foreign school shall have a Board of Directors to look after its interests, on which the students' guardians shall be represented.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states

to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

There are a number of organizational measures and procedures adopted by the State to facilitate access to education for many refugees who have come to Saudi Arabia from the Syrian Arab Republic and Yemen (to be mentioned subsequently).	
---	--

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☐ Inclusion in mainstream education

☐ Provision of language courses

☐ Specific training for educational staff

☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)

☐ Accelerated learning programmes

☐ Non-formal and/or alternative education programmes

☐ Financial support

☐ Other innovative measures:

--

Please briefly elaborate further on the measures taken:

- | |
|---|
| <ul style="list-style-type: none"> • Publication of two ministerial circulars based on august instructions from His Majesty the King regulating the admission of male and female Syrian and Yemeni students, Decision 332005774 of 3 November 2012 and Decision 362050928 of 8 September 2015, in accordance with a flexible and appropriate mechanism for their integration and admission to all Saudi schools. • They shall be exempt from accreditation and certification of academic documents; a photocopy shall suffice. Whoever does not have academic documents shall merely fill |
|---|

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

out the special form prepared for this purpose to determine their academic level and transmit it to the class corresponding to their age and level.

- Students who entered Saudi Arabia after the beginning of the school year shall continue to be admitted in accordance with the time of their entry.
- Adult Syrians and Yemenis shall be given an opportunity to be admitted to study in night schools and affiliated schools.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

--